

4.	25CV3235	SYNCHRONY BANK vs. CRAMER
Motion to Quash		

Code of Civil Procedure § 418.10(a) provides:

(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes:

(1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.

(2) To stay or dismiss the action on the ground of inconvenient forum.

(3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8.

Defendant's motion claims 1) lack of service, 2) lack of a proof of service and 3) inconvenient forum.

Defendant's motion states that "El Dorado Superior Court is an inconvenient forum," but makes no further argument and provides no further evidence on this issue. Plaintiff has filed a Statement of Venue listing Defendant's address as being within El Dorado County, at the same address listed on Defendant's motion.

Defendant argues that there is no proof of service, but a proof of service of the Summons and Complaint was filed with the Court on December 17, 2025, showing service on Defendant at his address.

Finally, Defendant takes issue with the veracity of the affidavit of the process server, claiming that he left his home before service was made and didn't return until that evening. To substantiate this claim he submits photographs provided by his HOA showing a vehicle leaving the HOA at approximately 10:00 a.m. and another image of a vehicle entering the HOA at approximately 6:00 p.m. However, the statement from the HOA transmitting the images notes that there is no image of the driver of the vehicle(s) pictured in the images, and that the license plate of the vehicle leaving the HOA in the morning is not visible. While the license plate of the vehicle entering the HOA in the evening was captured, there is no evidence provided that Defendant's vehicle bears that license plate number. Nor do these images provide evidence that Defendant did not return home between those hours. In short, none of these images establish that Defendant was not present when the process server served the Summons and Complaint.

The Proof of Service of Summons on file with the Court declares that personal service of the Summons and Complaint was made by a registered California process server on Defendant

April 3, 2026
Dept. 9
Tentative Rulings

at 11:35 a.m. on December 14, 2025, and that his identity was confirmed by “nodding when named”. The process server stated that Defendant was a white male “55-65 years of age, 5'8"-5'10" tall and weighing 160-180 lbs.” Defendant does not take issue with this physical description.

Code of Civil Procedure § 415.10 governs the service of a Summons and Complaint by personal service: “A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery.”

Code of Civil Procedure § 417.10 states: “Proof that a summons was served on a person within this state shall be made: (a) If served under Section 415.10 . . . , by the affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, . . .”

Evidence Code § 647 establishes a presumption affecting the burden of producing evidence, of the facts stated in the proof of service when the process server is registered with the State of California under Division 8 of the Business and Professions Code (Business and Professions Code §§ 22350, et seq.). *See also, Floveyor Internat., Ltd. v. Superior Court* 59 Cal.App.4th 789, 795 (1997).

Defendant has not submitted sufficient evidence to overcome this presumption.

TENTATIVE RULING #4: DEFENDANT’S MOTION TO QUASH IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

April 3, 2026
Dept. 9
Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**